

To: Steven Posnack, Principal Deputy Assistant Secretary for Technology Policy, ASTP/ONC
From: Mitchell Berger (mazruia@hotmail.com)(writing in private capacity) Jan. 5, 2025

Re: Request for Information (RFI): Accelerating the Adoption and Use of Artificial Intelligence (AI) as part of Clinical Care, <https://www.federalregister.gov/public-inspection/2025-23641/request-for-information-accelerating-the-adoption-and-use-of-artificial-intelligence-as-part-of>, “HHS Health Sector AI RFI”

Dear Mr. Posnack: In response to HHS’s request for information (RFI) concerning suggestions for Accelerating the Adoption and use of AI as part of clinical care,¹ I write to suggest that HHS further emphasize the ethical aspects of AI in its work addressing AI in clinical care, including involving HHS and other federal bioethics staff and advisory committees, collaborating with non-federal ethics and bioethics centers, departments and institutes, and potentially supporting restoration of a Presidential-Level commission on bioethics to discuss AI and other topics.

As one author defines it, “AI ethics is a set of values, principles, and techniques that employ widely accepted standards of right and wrong to guide moral conduct in the development and use of AI technologies.”² Ethical issues with respect to AI in clinical care may arise with respect to data ownership, privacy, data sharing and potential (re)identification of individual patients. Some commenters have expressed concerns about ethical implications associated with: potential use of biased tools and algorithms; autonomous AI systems; governance and oversight of AI systems; access to the benefits of AI (both for US-based and international/lower-middle income nation populations, researchers and students); data and AI tool/system ownership; how use of AI will be acknowledged (e.g., as in authorship and obtaining patient informed consent); billing and reimbursement for use of AI tools/services; impacts of AI on jobs and provider-patient relationships; long-term evaluation of AI impacts and potential dual uses/misuses of AI systems.³ Concerns about the quality of AI systems also may raise ethical issues. As one recent article notes, “AI is only as good as the data you feed into it.”⁴ Beyond considerations that may apply to AI generally, use of AI for certain specific clinical applications (e.g., behavioral health, pediatrics) may require additional scrutiny.⁵ Yet, while not without challenges, AI also may do

¹ <https://www.hhs.gov/press-room/hhs-ai-rfi.html>

² Leslie D., Understanding artificial intelligence ethics and safety: A guide for the responsible design and implementation of AI systems in the public sector. The Alan Turing Institute. 2019. https://papers.ssrn.com/sol3/papers.cfm?abstract_id=3403301

³ Bouhouita-Guermech S, et al., Specific challenges posed by artificial intelligence in research ethics. *Front Artif Intell.* 2023 Jul 6;6:1149082; <https://www.coe.int/en/web/human-rights-and-biomedicine/common-ethical-challenges-in-ai>; <https://researchfeatures.com/ai-dual-use-technology-cautionary-tale/>; Khan, MS et al., Artificial intelligence for low income countries. *Humanit Soc Sci Commun* 11, 1422 (2024) <https://doi.org/10.1057/s41599-024-03947-w>; Leslie D., Understanding artificial intelligence ethics and safety: A guide for the responsible design and implementation of AI systems in the public sector. The Alan Turing Institute. 2019; J. Wick. Ethical Considerations of Artificial Intelligence Use Abound, *Pharmacy Times*, Nov. 12, 2025, <https://www.pharmacytimes.com/view/ethical-considerations-of-artificial-intelligence-use-abound>; H Klei Ethical Considerations for AI in clinical decision-making, *AJMC*, Sept. 7, 2024, <https://www.ajmc.com/view/ethical-considerations-for-ai-in-clinical-decision-making>; Ning Y. et al., Generative artificial intelligence and ethical considerations in health care: a scoping review and ethics checklist. *Lancet Digit Health.* 2024 Nov;6(11):e848-e856. doi: 10.1016/S2589-7500(24)00143-2; EB Weiner et al., Ethical challenges and evolving strategies in the integration of artificial intelligence into clinical practice, *PLOS Digital Health*, 2025; April 8;4(4):e0000810

⁴ <https://www.biopharminternational.com/view/qualifying-ai-algorithms-in-pharmaceutical-manufacturing>

⁵ Saeidnia, HR et al., Ethical Considerations in Artificial Intelligence Interventions for Mental Health and Well-Being: Ensuring Responsible Implementation and Impact. *Soc. Sci.* 2024;13:381. <https://doi.org/10.3390/socsci13070381>; <https://www.davidruttenberg.com/post/the-autism-advantage-in-ai-ethics-why-neurodivergent-minds-are-essential-for-responsible-technology>

much to promote overall access to care, enhance quality of care and improve patient outcomes, among other just and positive outcomes.⁶

The National Artificial Intelligence Research Resource (NAIRR), now under the auspices of the National Science Foundation, emphasized ethical issues in its 2022 interim report and 2023 final report which called for the creation of an ethics advisory board to guide AI research.⁷ NAIRR commented in its interim report that “[t]o earn and maintain public trust, research in areas that may impact privacy, civil rights, or civil liberties will need to be reviewed, approved, and performed in a way that meets the expectations of civil society and protects subjects' rights.” In its final report, NAIRR recommended developing an ethics advisory board to provide advice to NAIRR and NSF on “issues of ethics, fairness, bias, accessibility, and AI risks and blindspots.”

To support an ethical component to its AI programs, HHS could include NIH’s bioethics staff and others who have expertise and use its advisory committees to discuss and obtain input about the ethical and moral implications of AI topics.⁸ HHS also can collaborate with academic and nonprofit ethics and bioethics centers, institutes and departments.⁹ In an ideal world, private companies, academic institutions, faith-based entities and other nonprofits will join HHS in implementing their own ethical programs and advisory boards focused on AI and clinical care issues. Toward this end, HHS could consider supporting restoration of the Presidential Bioethics Commission that historically have helped research and set policy on bioethics topics.¹⁰ Historically, these commissions, which existed prior to 2017 under several Administrations, have researched and made recommendations on such topics as access to care, cloning, whole genome sequencing, neuroscience, synthetic biology, newborn screening, clinical research, pandemics/emergency preparedness topics and aging/caregiving. With adequate staff and funding, a new Presidential bioethics commission would well-positioned to examine and make recommendations relating to the ethical aspects of AI and its use(s) in clinical care as discussed in this RFI.

Sincerely,



Mitchell Berger

Note/disclaimer: The views expressed above are solely those of the author and should not be imputed to other individuals nor to any public/private entity.

⁶ Id. at 3. See also, <https://dhi.org/health-ai-partnership-an-innovation-and-learning-network-to-facilitate-the-safe-effective-and-responsible-diffusion-of-health-ai-software-applied-to-health-care-delivery-settings/>; <https://healthitanalytics.com/news/more-legal-clarification-needed-for-clinical-algorithm-development-use/>; Drugs aren't typically tested on women -- artificial intelligence could correct that bias, <https://www.sciencedaily.com/releases/2020/09/200930144424.htm>

⁷ https://www.ai.gov/nairrtf/#INTERIM_REPORT_AND_REQUEST_FOR_PUBLIC_INFORMATION; NSF Strengthening and Democratizing the U.S. Artificial Intelligence Innovation Ecosystem, 2023, <https://nsf.gov-resources.nsf.gov/2023-10/NAIRR-TF-Final-Report-2023.pdf>; NAIRR Pilot Inaugural meeting final report, 2025, <https://nairrpilot.org/resources/2025-inaugural-annual-meeting-final-report>

⁸ NIH Dept. of Bioethics, <https://www.cc.nih.gov/bioethics>

⁹ <https://bioethicstoday.org/ethics-centers-departments-programs/>; <https://members.appe-ethics.org/organizational-members/Search/institutional-organizational-memberships-486004>

¹⁰ J. Meaney, Bring Back the President’s Council on Bioethics, National Catholic Bioethics Center, Dec. 17, 2024, <https://www.ncbcenter.org/messages-from-presidents/councilonbioethics/>; M. Galvin, NAS and NAM Presidents, Other Experts Urge Biden Administration to Reinstate Presidential Bioethics Commission, March 2022, National Academies, <https://www.nationalacademies.org/news/nas-and-nam-presidents-other-experts-urge-biden-administration-to-reinstate-presidential-bioethics-commission>; Hastings Center, Goals and Practice of Public Bioethics: Reflections on National Bioethics Commissions, May-June 2017, <https://onlinelibrary.wiley.com/toc/1552146x/2017/47/S1>; Adashi EY, Cohen IG. An Overdue Executive Order: Reinstating the National Bioethics Commission. Am J Med. 2021 Oct;134(10):1199-1200. doi: 10.1016/j.amjmed.2021.04.018